

L2A™

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(c) Describe the Law and Justice systems in the Indian Tribes

Haebel defined law as a social institution to check any deviance from prescribed norms of society.

In modern societies, law and justice are enforced through various specialised agencies. While in simple societies, it is done through imposing sanctions.

Radcliffe Brown defined a social sanction as a response of the society towards a particular act. It can be positive or negative.

Negative sanctions are imposed in various forms:

- 1) Reciprocity as sanction : eg: withdrawal of reciprocity of mother towards her son
- 2) Public opinion and mockery against witchcraft and incest.

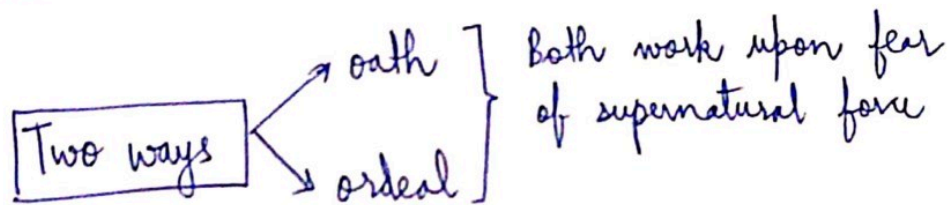
- 3) Ritual sanction : For eg: not obeying elders among Mosai may invite sanctions.

Although the conflicts and feud is very less in simple societies. The main aim of justice is not to punish the guilty but to restore harmony.

For example conflict is resolved in following ways:-

- 1) Among Khonds of Odisha, in case of love marriage, the couple needs to give a huge feast to community.
- 2) Song Duel among Inuits to resolve intra band conflicts.
- 3) Blood feud among Neur often mediated by Leopard Skin chief to resolve the dispute.

- There is also process to establish guilt. It is need in cases where accused denies of any wrongdoings but is not able to prove his innocence.



- 1) & Santhal through oath ask accused to chant 'Dharma Dharma'
- 2) Ordeal involves giving severe pain. Among Maler, 'sevali' is performed that is accused is made to lick hot iron & rod.

Hence, among simple societies the concept of sin and fear of supernatural forces is more prominent.

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